

Deposition of Leora Benton — appearance and background

Q. Please state your position at Blue Cedar before March 24, 2025.

A. I was a senior compliance audit manager. I planned regulated-client audits, assigned field staff, reviewed exception work, and coordinated remediation with clients.

Q. When did you begin?

A. In 2019. Naomi Voss supervised me during the period in this case.

Q. Is your testimony based on your recollection and the exhibits shown today?

A. Yes. I reviewed the opposition messages, charge materials, workbook, scorecards, and my performance records before answering.

Q. Were you disciplined before the reduction in force?

A. No. My 2024 review called me a strong performer.

Duties and performance measures

Q. What work did you perform that overlapped with the retained managers?

A. Each of us planned engagements, selected field teams, reviewed findings, and spoke with clients about remediation. We had different portfolios, but we worked from the same manager job description.

Q. What was remediation quality?

A. I chaired a monthly review of serious control exceptions. After I left, Calvin Keene received the review queue and Ms. Voss chaired the meeting.

Q. How was your completion record?

A. Forty-seven of fifty audits were timely in 2024. Two delays were client document holds and one was a staffing gap. The workbook gave me 27 of 30 points.

Lead assignments and sex-based concern

Q. What led to your January complaint?

A. I compared the people recorded as leads with the people doing the planning and field work. On Lantern, Hearth, and Juniper, I or another woman performed substantial lead work while a male manager received the recorded designation.

Q. Why did that matter?

A. Lead totals affected reviews and advancement. If the label was assigned unevenly, the score could preserve the same disparity.

Q. Did you ask Blue Cedar simply to make you lead?

A. No. I asked for an audit and a neutral assignment rule. I said the pattern appeared sex-based and asked that the metric be paused.

January 17 opposition and follow-up

Q. Did your email use the term discrimination?

A. Yes. I wrote “sex-based assignment pattern” and said it could be discriminatory. I sent it to Ms. Voss and Mira Solis.

Q. What happened next?

A. Ms. Voss acknowledged it and forwarded it. Ms. Solis opened ER-25-014, requested examples, and met with us on January 29.

Q. Did you provide data?

A. On January 24 I sent twelve engagement rows and linked planning files. I asked that any staffing review use actual work, not just the recorded lead field.

Q. Was the concern resolved by January 31?

A. No. Human resources said the review remained open.

EEOC charge and employer notice

Q. When did you file the charge?

A. February 3. I repeated the assignment concern and said I feared the scoring process could be used against me.

Q. How do you know Blue Cedar received notice on February 10?

A. I later saw the agency receipt and company routing log in discovery. I was not present when Ms. Solis downloaded it or when Mr. Pike opened it.

Q. Did anyone tell you Mr. Pike knew?

A. Not at the time. My knowledge now comes from the open event, his reply, the calendar entry, and his testimony. I do not claim I watched him read the packet.

Early RIF signals and workbook changes

Q. When did you first learn a reduction might affect you?

A. On March 21 Ms. Voss scheduled a meeting for March 24. Before that, I knew leadership was reviewing budgets, but I was not shown the workbook.

Q. What did discovery show?

A. The workbook opened February 14. My imported total was 84. During March it fell to 68 through continuity, availability, and uniqueness edits.

Q. Were you interviewed about those edits?

A. No. No one asked about my June transitions or the December trip conflict before reducing the scores.

Q. Did your completion or credential score fall?

A. No. Those stayed 27 and 14.

Comparator observations

Q. Explain your comparison to Tessa Wynn.

A. We both managed client transitions. Her Lantern transition ended in May and received more continuity credit; mine ended in June and lost credit as handoff capable.

Q. And Omar Ibarra?

A. He volunteered for future travel and gained availability points. I completed more travel but lost points for one next-day trip that conflicted with a scheduled closeout.

Q. Calvin Keene?

A. He maintained useful scripts. I also reviewed the testing templates and chaired remediation quality. After termination he received that work, but his uniqueness score increased while mine decreased.

Q. Are you saying the employees were identical?

A. No. I am saying the same team compared overlapping functions inconsistently.

Termination meeting and stated reason

Q. What did Blue Cedar tell you on March 24?

A. Mr. Pike and Ms. Solis said the company had a payroll target and my management work could be redistributed. The letter said budget and redundancy. They did not criticize my performance or travel.

Q. What happened to your work?

A. Northline went to Ms. Wynn, Oriole to Mr. Ibarra, and the remediation queue to Mr. Keene.

Q. Did you dispute that the company sought savings?

A. No. I dispute why I was the manager selected. Discovery showed other scenarios met the target and later explanations added completion, travel, and client confidence.

Scope of disclosures and comparator evidence

Q. What subjects did you identify for Ms. Wynn in your initial disclosures?

A. Her duties, source metrics, calibration score, continuity exception, and the work she retained or received after the reduction in force.

Q. What documents support those subjects?

A. The common job description, Lantern schedule, scorecard, RIF workbook, calibration minutes, and March 25 redistribution message.

Q. Did your August 15 disclosure identify any subject for Ms. Wynn beyond her duties, source metrics, calibration score, continuity exception, and retained work?

A. No. Those were the subjects then known and stated. If I learned materially different discoverable information, the disclosure said I would supplement it.

Claimed harm, verification, and corrections

Q. What harm do you attribute to the termination?

A. Lost pay and benefits beginning March 24, job-search costs, and emotional distress. The amount requires payroll and mitigation evidence that is not quantified on this transcript page.

Q. Have you distinguished events you personally observed from information you learned in discovery?

A. Yes. I identified the routing log, workbook, scorecards, and redistribution records when an answer came from a produced document rather than my personal observation at the time.

The witness's errata correct "January 27" to "January 17" in the opposition chronology and "twenty-six" to "twenty-eight" completed travel days. No other substantive correction is recorded. The witness reserves signature under the governing deposition procedure.